CONSEIL DE L'EUROPE
COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

SECOND SECTION

PARTIAL DECISION

AS TO THE ADMISSIBILITY OF

Application nos 33088/96, 52236/99, 52451/99 - 52453/99, 52455/99, 52457/99 - 52459/99
by Anton JAZVINSKÝ
against the Slovak Republic

The European Court of Human Rights (Second Section), sitting on 7 September 2000 as a Chamber composed of:

Mr C.L. Rozakis, *President*,
Mr A.B. Baka,
Mr G. Bonello,
Mrs V. Strážnická,
Mr P. Lorenzen,
Mr M. Fischbach,
Mr A. Kovler, *judges*,
and Mr E. Fribergh, *Section Registrar*,

Having regard to the above application introduced on 26 March 1996, 26 August 1999 and 18 October 1999 respectively and registered on 20 September 1996, 29 October 1999 and 8 November 1999 respectively,

Having regard to Article 5 § 2 of Protocol No. 11 to the Convention, by which the competence to examine the application was transferred to the Court,

Having deliberated, decides as follows:

THE FACTS

The applicant is a Slovak national. He was born in Dolný Jiřetín (the Czech Republic) in 1946 and lives in Žiar nad Hronom (Slovakia).

A. The circumstances of the case

The facts of the case, as submitted by the applicant, may be summarised as follows.

1. Facts relating to the period prior to 18 March 1992

In May 1972 the applicant's motorbike was stolen. The police refused to record the applicant's criminal complaint and uttered offensive remarks in his respect.

On 11 August 1973 the Slovak State Insurance Company terminated the contract of insurance concerning the applicant's car.

On 26 February 1974 the Zvolen District Court (*Okresný súd*) dismissed the applicant's action concerning the lawfulness of his dismissal from the Slovak State Insurance Company in 1972. On 9 July 1974 the Banská Bystrica Regional Court (*Krajský súd*) upheld the first instance judgment. On 20 March 1974 the Zvolen District Court dismissed an action for defamation which the applicant had lodged in the context of his dismissal.

On 27 September 1974 the Žiar nad Hronom District Court granted a claim for a sum which the applicant had refused to pay to his lawyer. On 10 December 1974 the Žiar nad Hronom District Court ordered the enforcement of this decision.

In 1975 the applicant's disabled daughter was examined in a hospital. The doctor decided not to operate her heart. The applicant considers that this decision was erroneous. During her stay in the hospital the applicant's daughter was not provided with adequate care.

In 1975 the applicant was not allowed to work as a driver on a building site in the Soviet Union.

On 31 October 1978 the Žiar nad Hronom District Court partly granted the applicant's claim for compensation introduced against an insurance company. On 4 April 1979 the Banská Bystrica Regional Court upheld the first instance judgment. On 13 July 1979 and on 17 September 1979 respectively the Žiar nad Hronom District Court and the Banská Bystrica Regional Court dismissed the applicant's request for waiver of the costs of the proceedings.

In 1981 the police refused leave to spend holidays in the Socialist Federal Republic of Yugoslavia to the applicant and his wife. A policeman visited the applicant's flat in this context. The police also questioned the applicant's neighbours with a view to establishing whether he did not intend to emigrate. In 1991 the applicant unsuccessfully complained about these facts to the Police Regional Administration in Banská Bystrica.

On 7 July 1986 the Bardejov District Court ordered the applicant to pay compensation for equipment which he had removed from his flat without the approval of the owner. On 30 October 1986 the Banská Bystrica Regional Court dismissed the applicant's appeal.

2. Theft from the applicant's car in 1986

On 8 July 1986 the applicant's car was broken into and objects were stolen therefrom. On the same day the applicant filed a complaint to the police. He was heard by several policemen who ridiculed him and were impolite. The police did not find the perpetrator. On 10 October 1986 the police informed the insurance company which had insured the car, with reference to an expert opinion, that the boot of the car had not been penetrated contrary to the applicant's allegation. As a result, the applicant received no compensation.

On 8 October 1991 the applicant sued the police department in Žiar nad Hronom for damages. On 30 October 1991 the Žiar nad Hronom District Court discontinued the proceedings as the applicant had failed to pay the fees.

On 19 November 1991 the applicant lodged a new action for damages against the police department in Žiar nad Hronom. It was dismissed by the Žiar nad Hronom District Court on 29 September 1993. On 24 November 1993 the Banská Bystrica Regional Court upheld the first-instance judgment.

This part of the application was introduced on 26 March 1996.

3. The applicant's claim for protection of his good name and reputation of 1991

On 30 September 1991 the applicant lodged an action for protection of his good name and reputation against an employee of the Slovak Insurance Company who had uttered offensive remarks in his respect.

On 18 October 1991 the Žiar nad Hronom District Court discontinued the proceedings as the applicant had not paid the fees.

On 19 November 1991 the applicant lodged a new action. It was dismissed by the Zvolen District Court on 15 May 1992.

4. The applicant's citizenship

The applicant considers that he and the members of his family are entitled to both Slovak and Czech citizenship. He unsuccessfully requested the Slovak authorities to mention the fact that he has a double citizenship in his personal documents.

5. The applicant's telephone bill

The applicant challenged his telephone bill for March 1997 as he considered it excessive. He refused to pay the bill and his telephone was therefore disconnected in April 1997. The applicant unsuccessfully complained to the Slovak Telecommunications that the disconnection was unlawful and caused damage to him.

On 17 June 1997 the Banská Bystrica Regional Telecommunications Office accepted the applicant's objection. The applicant was charged with a sum equal to the average of his previous telephone bills.

After he had paid the sum, the Slovak Telecommunications re-connected the applicant's telephone on 21 October 1997.

6. The applicant's action of 1985 against the owner of his apartment

In 1985 the applicant claimed compensation from his employer on the ground that the flat which the latter had put at his disposal was in pour condition. On 27 February 1986 the Žiar nad Hronom District Court partly granted the action. On 5 June 1986 the Banská Bystrica Regional Court upheld the first-instance judgment. The applicant was granted compensation and the defendant company was ordered to eliminate certain shortcomings for which it was responsible.

Subsequently the applicant requested the enforcement of these decisions. He contended that the defendant company had not paid the whole sum granted to him.

On 10 September 1986 the applicant signed, in the premises of the Žiar nad Hronom District Court, a document indicating that the defendant company had paid the sum due. The applicant acknowledged that he had been advised about the possibility of bringing new enforcement proceedings should the defendant company fail to comply with the other obligations imposed. On the same day the Žiar nad Hronom District Court discontinued the enforcement proceedings.

The applicant maintains that the owner of his flat has not yet provided him with two keys of the entry into the block of flats as ordered by the District Court in 1986 and that its employees had caused new damage to him while repairing the flat.

7. Social benefits of the applicant's family

a) In 1973 the applicant's daughter was found to be completely disabled. Between 1985 and 1990 the applicant unsuccessfully claimed that his daughter should be granted an allowance covering a part of the purchase price of his car, the costs relating to the use of the car and several other benefits in addition to those already granted to her. The additional benefits claimed were granted on 6 November 1990.

On 16 March 1993 the Žiar nad Hronom District Office (*Okresný úrad*) dismissed a request by the applicant's disabled daughter concerning an allowance for the overall repair of the applicant's car. The District Office found that the requirements set out in the relevant regulation had not been met.

On 15 January 1999 the Žiar nad Hronom District Office asked the applicant to submit, by 28 February 1999, an affidavit if he wished to continue receiving an allocation on the use of his car for the needs of his disabled daughter. The applicant was further requested to enclose a certificate about the insurance and registration of his car as well as the certificate that his daughter was disabled.

On 12 May 1999 the applicant's wife requested that the allowances paid in respect of her disabled daughter should be increased. On 5 May 1999 the Žiar nad Hronom District Office granted the claim. The District Office had summoned the applicant's wife and requested her to submit the relevant documents before it decided on the claim.

The applicant's daughter has not been provided with medical aids and orthopedic shoes free of charge. Furthermore, the applicant is required to pay for medicaments for all members of his family to the extent that their price exceeds the amount reimbursed by the health insurance company.

b) In 1996 the applicant claimed an education allowance for his daughter. An official of the Žiar nad Hronom Municipal Office (*Metský úrad*) invited the applicant to submit the request in due form and to include the relevant documents concerning his family's situation. The applicant complied with the request, but the official orally informed the applicant that his claim had been lodged belatedly. The applicant did not pursue the case.

c) After the termination of his contract of employment on 31 October 1993 the applicant had difficulties in obtaining the allowances to which he was entitled. In particular, he was requested, in the course of 1994, to obtain further documents which, in his view, should have been established by the competent administrative authorities of their own initiative.

The applicant did not receive the family allowance for the period from 1 to 23 November 1993 because of his former employer's failure to submit the relevant documents to the Labour Office.

On 6 February 1997 the Žiar nad Hronom District Office increased the maintenance allowance paid to the applicant. On 15 April 1997 the Banská Bystrica Regional Office (*Krajský úrad*) dismissed the applicant's appeal.

On 9 March 1998 the Žiar nad Hronom District Office requested the aplicant to submit documents concerning his personal situation in order to determine his right to social allowances.

On 10 December 1998 the Žiar nad Hronom District Office decided to stop paying the rent on the applicant's behalf with effect from 1 January 1999. On 8 February 1999 the Banská Bystrica Regional Office dismissed the applicant's appeal.

By another decision of 10 December 1998 the Žiar nad Hronom District Office decided to stop paying social allowances to the applicant as from 1 January 1999 on the ground that he had not submitted a formal request to this effect as required by the law. On 8 February 1999 the Banská Bystrica Regional Office quashed the aforesaid decision.

On 23 March 1999 the Žiar nad Hronom District Office granted the applicant and his wife a social allowance so that their family's income equalled the statutory minimum. The allowance was granted as from 1 January 1999.

On 10 May 1999 the Žiar nad Hronom District Office withdrew, with effect from 1 May 1999, the aforesaid social allowance from the applicant on the ground that he had failed to show that he was trying to find a job. On 8 July 1999 the Banská Bystrica Regional Office quashed the decision as being unlawful.

On 19 July 1999 the Žiar nad Hronom District Office reduced the social allowance paid to the applicant with effect from 1 May 1999.

On 30 August 1999 the Žiar nad Hronom District Office increased the social allowance paid to the applicant's family with effect from 1 July 1999.

On 10 September 1999 the applicant appealed. He alleged that the allowances were being paid to him with several months' delays. He further claimed that the District Office should provide him with medicaments and pay his treatment in a spa.

On 21 October 1999 the Banská Bystrica Regional Office dismissed the appeal.

On 28 January 2000 the Žiar nad Hronom District Office reduced the social allowance paid to the applicant.

On 15 February 2000 the applicant appealed. The proceedings are pending.

8. Criminal complaints about violation of the applicant's right to respect for his home

a) On 1 December 1993 the applicant lodged a criminal complaint against a person charged with the maintenance of the block of flats in which he lives. The applicant alleged that the person had entered his living room without permission. The complaint was dismissed at three levels. The final decision was taken by the Banská Bystrica Regional Prosecutor's Office on 28 February 1994.

b) On 9 January 1994 a policeman came to the applicant's place. He stated that the applicant had been summoned to the police station and asked why he had failed to appear. The applicant replied that he had received no summons. After a while the policeman came back, affirmed that the applicant had been duly summoned and made intimidating remarks in his respect. The applicant complained about the policeman's behaviour. On 28 January 1994 the Žiar nad Hronom Police Department dismissed the complaint.

This part of the application was introduced on 26 March 1996.

9. Denationalisation of State owned property

a) The applicant acquired shares of an investment fund set up by the Slovak Insurance Company Ltd. in the context of the first round of denationalisation by coupons (*kupónová privatizácia*).

At the end of 1993 the value of the applicant's shares equalled 31,520 Slovak korunas (SKK). After the merger of the investment fund with several others the value of the applicant's shares diminished to SKK 660 in 1996. In the applicant's view, the devaluation of his shares was due to mismanagement of the Slovak Insurance Company Ltd. the principal shareholder of which was the State. Furthermore, the relevant legislation did not provide sufficient protection to individual shareholders.

b) The applicant invested SKK 1,050 with a view to participating in the second round of denationalisation by coupons. He intended to obtain shares in companies which were to be denationalised in this way. Subsequently the competent authorities decided not to proceed with the second round of denationalisation by coupons and issued the persons who wished to participate in it with bonds payable in 2001.

The bond holders were later given the opportunity to buy shares of certain companies which were being denationalised. The choice of the shares was restricted as the most profitable companies were denationalised by direct sale.

On 4 November 1996 the applicant offered his bond for sale at the stock exchange. On 8 February 1997 the administrator of the stock exchange informed the applicant that it had not been possible to sell the bond for lack of demand.

10. Injury of the applicant's daughter

On 16 December 1992 the applicant's daughter was injured by a car.

On 26 March 1993 the police informed the applicant that the driver had been sanctioned under the Minor Offences Act.

On 19 January 1994 the Minister of the Interior dismissed the applicant's complaint concerning the way in which the police had dealt with the case.

As the insurance company had failed to pay damages to the applicant's daughter, the applicant brought an action before the Žiar nad Hronom District Court. It was dismissed on 14 March 1995. On 29 May 1995 the Banská Bystrica Regional Court upheld the first instance judgment.

This part of the application was introduced on 26 March 1996.

11. The contracts of insurance of the applicant's family

On 24 March 1998 the Slovak Insurance Company Ltd. terminated the applicant's contract of insurance with a notice expiring on 13 June 1998.

On 28 May 1998 the Slovak Insurance Company Ltd. informed the applicant that the overall sum payable under one of his contracts had been reduced following his failure to pay the insurance fees during six months.

On 22 June 1998 the Slovak Insurance Company Ltd. invited the applicant to pay 380 SKK which he owed in respect of a contract of insurance terminated by 22 March 1998.

12. The criminal proceedings against the applicant

In January 1973 the Žiar nad Hronom District Court convicted the applicant of several offences and sentenced him to 18 months' imprisonment.

On 20 March 1973 the Banská Bystrica Regional Court quashed the first instance judgment and discontinued the proceedings concerning the charge for "disrespect of duties related to the functioning of a socialist organisation" as this offence fell under the presidential grace of 23 February 1973. As for the remaining charges, the case was sent back to the District Court. The applicant attended the hearing held on 20 March 1973 together with his lawyer. The Regional Court's decision was served on 15 May 1973.

On 16 May 1973 the applicant requested the Regional Court to resume the proceedings concerning the charge in respect of which they had been discontinued. He asked the court to determine this charge even in case that his request was lodged out of time. The applicant explained that he had not understood the decision delivered orally on 20 March 1973 as he had been nervous.

On 17 May 1973 the applicant sent a registered letter to the Žiar nad Hronom District Court requesting it to resume the proceedings concerning the charge for "disrespect of duties related to the functioning of a socialist organisation".

On 27 August 1973 and on 20 November 1973 respectively the Žiar nad Hronom District Court acquitted the applicant of the charges in respect of which the proceedings had not been discontinued.

In a petition of 20 December 1976 the applicant requested the General Prosecutor's Office to exempt him from the obligation to lodge the request for the discontinued part of the criminal proceedings to be resumed within the three days' time-limit laid down in Section 11 (2) of the Code of Criminal Procedure (see "Relevant domestic law" below). He explained that he had failed to comply with the time-limit because of his lawyer's fault.

In 1992 the applicant complained to the Supreme Court that the Žiar nad Hronom District Court had failed to determine his charge for "disrespect of duties related to the functioning of a socialist organisation". The complaint was transmitted to the president of the Žiar nad Hronom District Court.

On 15 June 1992 the president of the Žiar nad Hronom District Court dismissed the complaint. He pointed out to the record of the hearing of 20 March 1973 at which both the applicant and his lawyer had been present and concluded that the time-limit for lodging a request for the proceedings to be continued set out in Section 11 (2) of the Code of Criminal Procedure had expired on 23 March 1973. The letter further stated that the decision of 20 March 1973 was final and that the applicant's request for the proceedings to be resumed of 16 May 1973 could not affect this position as it had been lodged out of time.

This part of the application was introduced on 26 March 1996.

13. The applicant's claim for damages of 5 August 1998

On 5 August 1998 the applicant claimed damages from the company which owns the block of flats in which he lives. He alleged that he had injured himself on stairs which had not been maintained.

On 6 August 1998 the Žiar nad Hronom District Court issued a payment order granting the applicant's claim. On 13 August 1998 the defendant company challenged the order.

On 14 October 1998 and on 9 November 1998 the applicant challenged the Žiar nad Hronom District Court judges on the ground that he disapproved of the way the District Court had proceeded with other cases involving his person.

On 20 November 1998 the Banská Bystrica Regional Court excluded a District Court judge who had stated that she was an acquaintance of the applicant. It noted that the applicant had not invoked any relevant reason for excluding the judges. In a supplementary decision of 23 February 1999 the Banská Bystrica Regional Court specified the names of the District Court judges who were not excluded.

On 17 May 1999 the Žiar nad Hronom District Court dismissed the action. It held that the applicant had failed to show how he had injured himself and that he had suffered any damage in this respect.

On 1 July 1999 the applicant appealed. He alleged that the District Court had disregarded the medical report concerning his injury and that two witnesses had refused to address the court.

On 4 August 1999 the Žiar nad Hronom District Court exempted the applicant from paying the costs of the appellate proceedings.

On 29 September 1999 the Banská Bystrica Regional Court upheld the first instance judgment with reference to the reasons set out in it. The Regional Court did not consider the medical report to be reliable evidence as the description in it of how the applicant had sustained the injury was based on his own statements.

14. Interference with the applicant's correspondence

An envelope containing application forms sent by the Court's Registry on 20 September 1999 was delivered damaged to the applicant. The envelope bore a remark made by an employee of the post office in Žiar nad Hronom on 29 September 1999 indicating that it had reached the post office damaged.

15. The applicant's action concerning the maintenance of an underground room

On 28 June 1999 the applicant lodged an action with the Žiar nad Hronom District Court. He claimed that the owner of the block of flats in which he lives should duly maintain an underground room frequently flooded with water.

On 2 August 1999 the Žiar nad Hronom District Court informed the applicant that the case could not be proceeded with as his submissions of 28 June 1999 were unclear. The applicant was advised, with reference to the relevant provisions of the Code of Civil Procedure, about the information an action should contain. It appears that the applicant made no further submissions in this respect.

16. The applicant's action for recovery of an overpaid fee

On 28 June 1999 the applicant introduced an action with the Žiar nad Hronom District Court. He claimed 3,111 SKK which he had overpaid for the heating of his flat. The applicant further requested the waiver of the court fees.

By a separate document submitted on 28 June 1999 the applicant requested the Žiar nad Hronom District Court to issue a payment order granting him the aforesaid sum. The two

submissions were registered separately under no. 9C 819/99 and no. 1 Ro 507/99 respectively.

On 8 July 1999 the District Court discontinued proceedings no. 9C 819/99 on the ground that the same claim was being examined in a separate set of proceedings.

On 19 July 1999 the applicant challenged the judge dealing with the case registered under no. 1 Ro 507/99 on the ground that the latter had violated the applicant's rights under Article 6 § 1 of the Convention in a different set of proceedings.

On 21 July 1999 the applicant submitted, at the District Court's request, documents in support of his request for the waiver of court fees.

17. First set of proceedings concerning outstanding rent

In September 1991 the applicant stopped paying the rent as the company which owns his flat had not repaired it properly. In 1993 the owner claimed the outstanding rent before the Žiar nad Hronom District Court. In December 1993 the latter issued a payment order. On 5 January 1994 the applicant challenged the order.

On 25 March 1994 the Žiar nad Hronom District Court delivered a judgment in which it granted the action. The applicant appealed.

On 16 August 1994 the applicant complained to the president of the Banská Bystrica Regional Court that the first instance judge had disregarded his comments on the conduct of the proceedings and had refused to record his objections to the statements made by the witnesses. The applicant further maintained that his flat had not been duly maintained and alleged that he was entitled either to a reduction in the rent or to compensation.

On 16 August 1994 the Banská Bystrica Regional Court quashed the District Court's judgment of 25 March 1994. It ordered the first instance court to take further evidence and, in particular, to establish whether the applicant's argument according to which his rent should be reduced was a counter-claim.

On 15 December 1994 the Banská Bystrica Regional Court dismissed the applicant's request for exclusion of the District Court judge dealing with the case. It considered irrelevant the applicant's argument that the judge was biased because the applicant had earlier lodged a complaint against him with the Regional Court.

On 15 February 1995 the Žiar nad Hronom District Court granted the owner's action and ordered the applicant to pay the outstanding rent. The court established that the applicant had lodged neither a counter-claim against the owner of the flat nor a formal request for his rent to be reduced in the context of the proceedings.

Prior to deciding on the action the District Court judge visited the applicant's flat. He also heard a neighbour of the applicant and the person responsible for the maintenance of the block of flats. The judgment stated that the claimant company was liable for defects and deterioration of the applicant's flat and that in the course of the proceedings it had reduced the sum claimed by ten percent on this account. The judge considered irrelevant ordering an expert opinion on this issue as it was not the subject-matter of the proceedings. At the

hearings the judge behaved in an arrogant manner and allowed one of the witnesses to utter offensive remarks in respect of the applicant.

On 20 April 1995 the applicant appealed. He alleged that the District Court had failed to establish the facts correctly and that it had decided arbitrarily. The applicant maintained, in particular, that the judge should have taken into account the damage the claimant company had caused to him, that the judge had refused to consider an expert opinion on this issue and that the claimant company had failed to repair all defects in the flat as ordered by the courts in 1986. Furthermore, the judge had not accepted the applicant's remarks on how the statements made by witnesses should be recorded.

On 25 April 1995 the president of the Žiar nad Hronom District Court informed the applicant, with reference to the latter's complaint of 9 April 1995, that the judge dealing with the case was not obliged to provide him with copies of the statements of witnesses and that the applicant was free to consult the file and to take notes of all documents included in it.

On 13 June 1995 the Banská Bystrica Regional Court dismissed the appeal. It established that the applicant owed the sum in question as a result of his failure to pay the rent. It considered irrelevant that the claimant company had caused damage to the applicant by failing to maintain the apartment as this issue was not the subject-matter of the proceedings. The Regional Court noted that it was open to the applicant to seek redress in this respect by means of a separate action. The judgment was served on 8 December 1995.

On 22 November 1996 the Žiar nad Hronom District Court ordered the enforcement of the judgments concerning the outstanding rent.

On 31 December 1996 the applicant filed an objection to the enforcement. It was dismissed by the Žiar nad Hronom District Court on 28 May 1997.

On 11 December 1997 the applicant was informed that the sum due would be enforced by selling his stocks and shares.

On 6 April 1998 the District Court reduced the sum to be enforced by 4,354 SKK as the owner of the flat owed it to the applicant.

By orders of 23 February 1998, 13 March 1998 and of 5 May 1998 the enforcement officer ordered the sale of the applicant's stocks and shares.

On 27 July 1998 the applicant requested that the enforcement proceedings be discontinued.

18. Second set of proceedings concerning outstanding rent

On 22 January 1997 the owner of the apartment used by the applicant claimed the outstanding rent and fees relating to the use of the apartment for the period from 1 January 1994 to 31 March 1996. The claimant company reduced the sum due by ten percent on the ground that the District Court had found earlier (see point 17 above), that it had failed to duly maintain the flat.

On 27 January 1997 the Žiar nad Hronom District Court issued a payment order granting the claim.

On 21 February 1997 the applicant filed an objection to the order. The District Court therefore proceeded with the case in ordinary proceedings. The applicant argued that the claimant company had failed to duly maintain the apartment and caused damage to him.

On 22 May 1997 the District Court granted the applicant's request for waiver of court fees.

In October 1997 the applicant requested the District Court to hear six witnesses with a view to proving the claimant's failure to eliminate defects in his apartment and to maintain it properly.

On 30 April 1998 the applicant informed the judge that he could make no submissions on the case as he was bound by the confidential character of the proceedings before the European Commission of Human Rights where his application concerning this issue was pending. He stated that he would consider the judge biased if she proceeded with the case despite this fact. The applicant was requested to leave the court room. After about an hour he was called back and the court delivered a judgment granting the claimant company's action.

In the judgment the court noted that the applicant was obliged, pursuant to the relevant provisions of the Civil Code, to pay the rent and that the claimant company had reduced the sum due by ten per cent on account of defects for which it was responsible. The court established that, as regards the defects in the flat, the applicant referred to the same facts which had already been examined in another proceedings concerning outstanding rent for an earlier period. For this reason, the court did not consider it necessary to take further evidence on this issue. The court allowed the applicant to pay the debt by monthly instalments of 300 SKK with reference to his situation.

On 26 June and on 27 July 1998 the applicant appealed. He complained that the District Court judge had refused to hear witnesses and had proceeded with the case despite his objection as to her impartiality. He further alleged that the claimant company owed 12,929 SKK to him and that it had failed to repair and to maintain the flat.

On 10 September 1998 the Regional Court upheld the first instance judgment and modified the way in which the instalments were to be paid. It found that the applicant had failed to comply with his statutory obligation to pay the rent and the costs relating to the use of the flat. The appellate court noted that it was open to the applicant to bring separate proceedings with a view to having the rent reduced to a greater extent if, in the meantime, there had been any further deterioration of his flat imputable to its owner.

19. Disrespect of the applicant's rights by the Director General of the Aluminium Works in Žiar nad Hronom

The applicant considers that the Director General of the Aluminium Works in Žiar nad Hronom, his former employer, is responsible for violation of his rights in that (i) a theft of the applicant's watch was not investigated into properly and that no compensation was paid in this respect, (ii) the Director General took no action on the applicant's complaint of 1992 about unlawful actions of another employee of the company responsible for the

maintenance of the applicant's flat and, (iii) that the applicant was not granted the leave to work temporarily in a similar company in Austria.

20. The applicant's labour injury

On 4 July 1992 the applicant was injured at work. Subsequently the employer paid him compensation for injuries which he had suffered on his legs.

On 17 July 1992 doctors established that the applicant's liver was damaged. He has been under quarterly medical supervision on this account. The applicant considers that the damage resulted from his injury of 4 July 1992 and that he should also receive compensation in this respect.

On 5 September 1994 the trade union of which the applicant is a member asked the Regional Health Insurance Administration in Žiar nad Hronom to have the applicant's health assessed and, if necessary, to recommend his examination by experts. There has been no reaction to the request.

The applicant has not been provided with adequate medical care. In particular, the hospital in which he has been periodically examined cannot, for lack of means, carry out all tests necessary for the assessment of his health.

21. Termination of the applicant's contract of employment with the Aluminium Works in Žiar nad Hronom

On 19 July 1993 the applicant was informed that he would be dismissed from the Aluminium Works in Žiar nad Hronom by 31 October 1993. The letter stated that after the termination of the contract of employment the applicant would receive the double of his monthly salary. The applicant was invited to report, prior to 31 October 1993, at the personnel department with a view to receiving the relevant certificates.

In a letter of 5 November 1993 a representative of the Aluminium Works noted that the applicant had failed to comply with the aforesaid request. The documents necessary for the applicant's registration with the labour office were therefore enclosed to the letter. Finally, the applicant was invited to withdraw the double salary he was entitled to.

On 28 December 1993 the applicant challenged the lawfulness of his dismissal. He also claimed compensation for lost income. A judge instructed him to specify his claims. The applicant complied with the request on 7 February and on 2 May 1994. On the latter date he claimed, in particular, compensation for two days' salary. He explained that in August 1993 he had been absent with a view to finding a new job and that he had a right to compensation under the Labour Code.

On 20 May 1994 the applicant requested the exclusion of the Žiar nad Hronom District Court judges. He alleged that the judges knew the defendant company's lawyers and that one of his earlier actions had been lost by the court.

On 8 September 1994 the Banská Bystrica Regional Court excluded one of the District Court judges who had stated that she was an acquaintance of the applicant. It found no relevant reason for excluding the remaining judges.

The Žiar nad Hronom District Court scheduled hearings for 21 April 1995, 11 July 1995 and 25 August 1995. At each hearing the judge noted that the applicant failed to appear and that he had not received the summons. On 8 November 1995 the Žiar nad Hronom Town Office communicated the applicant's address to the District Court at the latter's request.

The next hearing was scheduled for 1 March 1996. On 28 February 1996 the applicant informed the court that he was ill and asked for the hearing to be adjourned. On 1 March 1996 the District Court heard the representatives of the defendant company and dismissed the action. It noted that the applicant had failed to appear notwithstanding that he had been summoned several times.

In the judgment the District Court established that the applicant had become redundant and that the dismissal had been lawful. The court held, with reference to the documents before it, that the two months' salary the applicant was entitled to had been paid. In the court's view, the applicant had in no way substantiated his claim for lost salary for the period subsequent to his dismissal.

On 16 April 1996 the applicant appealed. He alleged that he had not been heard by the District Court, that he had not received the sum to which he was entitled upon the termination of his contract of employment and that he had not become redundant.

The applicant further complained that eleven documents which he had submitted to the District Court had not been included in the file. He pointed out that the file comprised his action for compensation for his two days' absence loged on 2 May 1994 and that the District Court had failed to decide on it. The applicant also complained that his former employer had not complied with the obligation to let the applicant be examined by doctors prior to his dismissal. He pointed out that he had suffered a labour injury in 1992 for which he had not received full compensation.

On 5 September 1996 the Banská Bystrica Regional Court upheld the District Court's judgment of 1 March 1996. The Regional Court admitted that the first instance court had acted erroneously in that it had failed to hear the applicant. The Regional Court therefore allowed the applicant to submit orally all his arguments. The applicant was also allowed to submit documents which he considered relevant.

The Regional Court noted that it could only deal with the subject-matter of the proceedings, namely the alleged unlawfulness of the applicant's dismissal and the claims related thereto. It found that the dismissal had been in conformity with the law and that the applicant himself had admitted that he had received the double salary he was entitled to. The Regional Court considered irrelevant that the sum had not been paid by 31 October 1993 as required by the law. As to the applicant's claim for loss of salary after 1 November 1993, the Regional Court found that it had no basis in Slovak law.

Finally, the Regional Court found that the employer's failure to ensure a medical check-up of the applicant prior to the termination of the contract of employment was contrary to the collective contract bargained in 1993. However, this fact was irrelevant from the legal point of view as it had no bearing on the subject-matter of the proceedings.

This part of the application was introduced on 26 March 1996.

22. The applicant's claim under the Extra-Judicial Rehabilitations Act

On 24 September 1991 the applicant requested the Zvolen branch office of the Slovak Insurance Company Ltd. to rehabilitate him under the Extra-Judicial Rehabilitations Act for his dismissal in 1972.

On 30 September 1991 the director of the branch office informed the applicant that his claim should be submitted to the General Directorate of the Slovak Insurance Company Ltd. without delay. The applicant did so on the same day.

On 30 September 1991 the applicant also lodged an action with the Žiar nad Hronom District Court. He challenged the lawfulness of his dismissal in 1972 and requested the delivery of a certificate under the Extra-Judicial Rehabilitations Act. He claimed that his former employer should offer him a job. The action was registered under no. Nc 1779/91. On 20 March 1992 the Žiar nad Hronom District Court informed the applicant that the case had been transferred, for reasons of jurisdiction, to the Zvolen District Court on 8 October 1991.

In a letter of 31 October 1991 a judge of the Zvolen District Court informed the applicant, with reference to Section 21 (2) of the Extra-Judicial Rehabilitations Act, that judicial decisions in cases referred to in Section 21 (1) had been quashed and that pursuant to Section 22 (6) of the Act, the persons concerned were entitled neither to compensation nor to an automatic renewal of their contract of employment. Finally, the judge expressed the view that in the applicant's case there was no need for a formal decision to be taken and pointed to the applicant's rights under Section 24 (1) of the Extra-Judicial Rehabilitations Act.

On 9 March 1992 the General Directorate of the Slovak Insurance Company Ltd. informed the applicant that the provisions of the Extra-Judicial Rehabilitations Act were not applicable in his case. On 4 May 1992 the head of the supervision department of the Slovak Insurance Company Ltd. upheld this position.

On 5 April 1992 the applicant requested the Zvolen District Court to proceed with his case. On 13 April 1992 the president of the latter informed the applicant that his action of 30 September 1991 was not pending before her court.

On 12 May 1995 the applicant asked the Žiar nad Hronom District Court for an explanation as regards the examination of his action of 30 September 1991.

On 30 April 1996 the registrar of the Žiar nad Hronom District Court confirmed to the applicant that the action had been transmitted to the Zvolen District Court on 8 October 1991.

Subsequently the applicant unsuccessfully complained about the loss of his action to the Banská Bystrica Regional Court, to the Supreme Court and also to the Ministry of Justice.

This part of the application was introduced on 26 March 1996.

23. Proceedings concerning the theft from the applicant's car in 1997

On 20 June 1997 the applicant's car was broken into and objects belonging to him were stolen.

On 1 August 1997 the police investigator appointed an expert with a view to determining the damage.

On 9 December 1997 three persons were indicted before the Žiar nad Hronom District Court in this context. According to the indictment, the accused had caused a damage of 6,783 SKK to the applicant. The damage had been determined by an expert.

On 27 January 1998 the applicant complained that the damage had not been determined correctly.

On 28 January 1998 the Žiar nad Hronom District Court held a hearing. As one of the accused failed to appear, it decided to deal with the charges against him in a separate set of proceedings.

On 29 January 1998 the Žiar nad Hronom District Court convicted the other two accused of theft and ordered them to pay jointly a compensation of 6,783 SKK to the applicant. The court noted that this sum had been determined by an expert and that it was lower than the sum claimed by the applicant. The judgment stated that any outstanding damages could be claimed in civil proceedings.

On 9 March 1998 the applicant appealed. He complained that the damages granted to him had not been determined correctly.

On 29 April 1998 the Banská Bystrica Regional Court convicted the two accused of theft on several counts. It upheld the first instance decision on the claims for damages.

On 28 July 1998 the president of the Žiar nad Hronom District Court informed the applicant, in reply to the latter's complaint about the length of the criminal proceedings against the third accused, that the case file had been submitted to the Levice District Court on 5 June 1998.

The main hearing before the Levice District Court was scheduled for 26 May 1999. It was cancelled because the judge was ill.

On 12 June 1999 the applicant specified the damage which he had suffered to the Levice District Court.

Another hearing before the Levice District Court was scheduled for 23 June 1999. The accused failed to appear. The hearing was adjourned.

On 23 September 1999 the Levice District Court issued a penal order convicting the accused of theft. The applicant and the other persons claiming damages were instructed to lodge their claims with a civil court. The order stated that civil parties could challenge it only to the extent that they disagreed with damages that were granted to them.

On 6 and 8 October 1999 the applicant challenged the penal order requesting the criminal court to determine his claim for damages.

B. Relevant domestic law and practice

Pursuant to Section 11 (2) of the Code of Criminal Procedure, proceedings which were discontinued on account of the presidential grace are to be resumed if the accused requests so within three days after the notification of the decision to discontinue the proceedings. Courts are obliged to inform the accused about his right to lodge such a request.

Section 21 (1) of the Extra-Judicial Rehabilitations Act declares void all legal acts leading to termination of contracts of employment on account of persecution for political reasons or in violation of the generally recognised human rights and freedoms during the period between 25 February 1948 and 1 January 1990.

Section 21 (2) of the aforesaid Act provides, *inter alia*, that judicial decisions rejecting claims for such dismissals from employment to be declared unlawful are quashed.

Section 22 (1) of the Extra-Judicial Rehabilitations Act provides that the former employer shall issue, at the request of the person whose contract of employment was terminated for reasons set out in Section 21, a certificate to this effect. Paragraph 2 of Section 22 provides that such a request is to be lodged within six months after the entry into force of the Act on 1 April 1991.

Under paragraph 3 of Section 22, persons concerned can request the determination of this issue by a court within two years after the entry into force of the Act when the former employer fails to issue a certificate within three months after it received a request to this effect.

Pursuant to paragraph 6 of Section 22, a legal act declared invalid under Section 21 does not entail the renewal of the terminated contract of employment nor does it entitle the persons concerned to compensation for salary and damage.

Section 24 (1) of the of Extra-Judicial Rehabilitations Act provides that in cases when the termination of a contract of employment is considered invalid pursuant to Section 21 or 22, the period between the termination of the contract of employment until the moment when the person concerned has acquired the right to old-age pension or to invalidity pension is to be considered as period of employment for the purposes of the social security insurance.

COMPLAINTS

1. The applicant complains, with reference to the facts set out under point 1 above, that he and his family were persecuted, ill-treated and discriminated against by the Slovak authorities. He also complains that the proceedings in which he was involved were unfair and that his right to respect for his private and family life was not respected. He alleges a violation of Articles 3, 6 § 1, 8, 11, 13 and 14 of the Convention.

2. The applicant complains that the police failed to investigate the theft from his car in 1986 and that he received no compensation in this respect. He alleges a violation of Articles 3, 6 § 1, 8, 13 and 14 of the Convention.

3. The applicant complains about the dismissal of his claim for protection of his good name and reputation of 1991. He alleges a violation of Articles 3, 6, 7, 8, 11, 13 and 14 of the Convention.

4. The applicant complains that the Slovak authorities prevented him from freely deciding on his nationality in that they refused to recognise his right to have both Slovak and Czech citizenship. He alleges a violation of Articles 13 and 14 of the Convention.

5. The applicant complains about the disconnection of his telephone in 1997 and that he received no compensation in this respect. He alleges a violation of Articles 3, 8, 13 and 14 of the Convention.

6. The applicant complains that the owner of his flat had failed to comply with the Žiar nad Hronom District Court's judgment of 27 February 1986. He complains, in particular, that he was not provided with two keys from the block of flats in which he lives and that his property was damaged by employees of the company owning the flat. He invokes Articles 3, 6 § 1, 8, 13, 14 and 17 of the Convention, Article 1 of Protocol No. 1 and Article 3 of Protocol No. 7.

7. The applicant complains that his disabled daughter has not been granted all social benefits to which she is entitled under Slovak law, that the Žiar nad Hronom District Office has paid his family's social allowances belatedly and that he suffered damage as the District Office's decisions concerning this issue were quashed as being unlawful on several occasions. The applicant further complains that the local authorities have dealt with his requests for social allowances in a bureaucratic manner and that they caused damage to him by repeatedly requesting him to submit documents which they already had at their disposal. He maintains that by gathering information on his family's situation the administrative authorities have interfered with his right to respect for his private life. He alleges a violation of Articles 1, 3, 6, 8, 13, 14 and 17 of the Convention.

The applicant further complains that the right to work, to social security and the right to protection of one's health have not been respected in Slovakia, that persons in need have not been provided with adequate assistance and that their human dignity has not been respected. He invokes several provisions of the Constitution and also Article 1 of the European Social Charter.

8. The applicant complains about the dismissal of his criminal complaints against persons who infringed his right to respect for his home and private life (see point 8 in the facts above). He alleges a violation of Article 8 § 1 of the Convention.

9. The applicant complains about a violation of his property rights in that his shares lost their value as a result of the Government's failure to prevent shortcomings in the management of the Slovak Insurance Company Ltd. and to enact legislation sufficiently protecting the individual shareholders. He further complains that the second round of denationalisation by coupons was not carried out as originally envisaged, that he was not able to exchange his bond for shares in profit making companies or to sell it. He alleges, in substance, a violation of Article 1 of Protocol No. 1.

10. The applicant complains that the police failed to carry out an effective investigation into the accident in which his daughter had been injured in 1992 and about the dismissal of

the claim for compensation in this respect. He alleges a violation of Articles 6 § 1, 13 and 14 of the Convention.

11. The applicant complains that the Slovak Insurance Company Ltd. terminated several of his contracts and that it failed to comply with its contractual obligations. In the applicant's view, he cannot obtain redress before the Slovak courts as the latter have systematically decided against him. He alleges a violation of Articles 3, 6, 8, 11, 13 and 14 of the Convention.

12. The applicant complains that the criminal proceedings against him were unfair and that the courts have refused to determine also the charge in respect of which the proceedings were discontinued on 20 March 1973. He alleges a violation of Articles 3, 6, 8, 11, 13 and 14 of the Convention and also a violation of Article 3 of Protocol No. 7.

13. The applicant complains that the dismissal of his action for damages of 5 August 1998 was arbitrary and that the proceedings lasted unreasonably long. He also complains that the judges involved lacked impartiality. He alleges a violation of Articles 1, 3, 6 § 1, 13, 14 and 17 of the Convention.

14. The applicant complains that the mail sent to him by the Court's Registry on 20 September 1999 was opened and damaged. He alleges a violation of Articles 8, 10, 13, 14, 17 and 18 of the Convention.

15. The applicant complains that the Žiar nad Hronom District Court did not examine his action against the owner of the block of flats in which he lives introduced on 28 June 1999. He alleges a violation of Articles 1, 3, 6, 8, 10, 13, 14, 17 and 18 of the Convention.

16. The applicant complains that his right to a fair and public hearing within a reasonable time was not respected in the proceedings concerning his claim for an overpaid sum. He alleges a violation of Articles 1, 3, 6 § 1, 8, 13, 14, 17 and 18 of the Convention.

17. The applicant complains that the first proceedings concerning the outstanding rent and leading to the Banská Bystrica Regional Court's judgment of 13 June 1995 were not fair and that the judge dealing with the case at first instance lacked impartiality. In particular, the applicant complains that the judge did not accept his remarks concerning the conduct of the proceedings, that he failed to record the applicant's objections to statements made by the witnesses, did not provide him with the record of these statements and behaved arrogantly. Finally, the applicant complains that his family was humiliated as a result of the enforcement of the outstanding rent. He alleges a violation of Articles 3, 6 § 1, 8, 13 and 14 of the Convention.

18. The applicant complains that in the second set of proceedings concerning the outstanding rent the Žiar nad Hronom District Court refused to hear witnesses, that the judge lacked impartiality as she proceeded with the case despite his request not to do so, that the proceedings lasted unreasonably long and that the courts' decision to grant the claimant company's action were arbitrary. He alleges a violation of Articles 3, 6, 8, 13 and 14 of the Convention.

19. The applicant complains that the manager of the Aluminium Works in Žiar nad Hronom violated his rights in that (i) the applicant received no compensation for the theft of

his watch, (ii) the manager took no action on the applicant's complaint about unlawful actions of another employee of the company and, (iii) that the applicant was not granted the leave to work in a similar company in Austria. He alleges a violation of Articles 3, 8, 13 and 14 of the Convention.

20. The applicant complains that he was not compensated for the injury of his liver in 1992 and that he has not been provided with adequate medical care. He alleges a violation of Articles 4, 6, 8, 11, 13 and 14 of the Convention.

21. The applicant complains that the proceedings concerning his dismissal from the Aluminium Works in Žiar nad Hronom were unfair and that the courts' decisions on this issue were arbitrary. He complains, in particular, that the courts failed to establish the facts correctly, that the Žiar nad Hronom District Court did not include all documents submitted by him in the case file and that he was not heard at first instance. The applicant further complains that his claim for compensation for lost income of 2 May 1994 was not examined and that his right to a fair and public hearing within a reasonable time was thereby violated. He alleges a violation of Articles 3, 6, 8, 11, 13 and 14 of the Convention.

22. The applicant complains that the Zvolen District Court prevented him from being rehabilitated under the Extra-Judicial Rehabilitations Act in that it delivered a certificate to him on 31 October 1991, i.e. after the expiry of the period set for the introduction of claims under the Act. He alleges a violation of Articles 3, 6 § 1, 8, 13 and 14 of the Convention.

The applicant further complains that his action for rehabilitation lodged with the Žiar nad Hronom District Court on 30 September 1991 has not been decided upon. He alleges a violation of Articles 6 § 1, 13 and 14 of the Convention.

23. The applicant complains that the criminal proceedings against the perpetrators of the theft from his car in 1997 lasted unreasonably long, that the judgments delivered by the Žiar nad Hronom District Court and by the Banská Bystrica Regional Court on 29 January and on 29 April 1998 respectively are arbitrary and that his right to a fair and public hearing was not respected in the proceedings against the third perpetrator in which the Levice District Court delivered a penal order on 23 September 1999. He invokes Articles 1, 3, 6 §§ 1, 2 and 3 as well as Articles 8, 13, 14, 17 and 18 of the Convention.

THE LAW

1. The applicant complains, with reference to the facts set out in point 1 above, that he and his family were persecuted, ill-treated and discriminated against by the Slovak authorities. He also complains that the proceedings in which he was involved were unfair and that his right to respect for his private and family life was not respected. He alleges a violation of Articles 3, 6 § 1, 8, 11, 13 and 14 of the Convention.

The Court notes that the alleged violations relate to a period prior to 18 March 1992 which is the date when the former Czech and Slovak Federal Republic (to which the Slovak Republic is one of the successor States) ratified the Convention and recognised the right of individual petition. However, the Convention only governs, for each Contracting Party, facts that are subsequent to its entry into force with respect to that Party.

It follows that this part of the application is incompatible *ratione temporis* with the Convention within the meaning of Article 35 § 3.

2. The applicant complains that the police failed to investigate the theft from his car in 1986 and that he received no compensation in this respect. He alleges a violation of Articles 3, 6 § 1, 8, 13 and 14 of the Convention.

a) To the extent that the applicant complains about facts which are prior to 18 March 1992, the application must be rejected as being incompatible *ratione temporis* with the Convention within the meaning of Article 35 § 3.

b) The Court further notes that the final decision on the applicant's claim for damages was delivered by the Banská Bystrica Regional Court on 24 November 1993. As the complaint in this respect was introduced on 26 March 1996, the applicant failed to respect the six months' time-limit set out in Article 35 § 1 of the Convention.

It follows that this part of the application must be rejected under Article 35 § 4 of the Convention.

3. The applicant complains about the dismissal of his claim for protection of his good name and reputation of 1991. He alleges a violation of Articles 3, 6, 7, 8, 11, 13 and 14 of the Convention.

It does not appear from the documents submitted that the applicant appealed against the Zvolen District Court's judgment of 15 May 1992. He has not, therefore, exhausted domestic remedies as required by Article 35 § 1 of the Convention.

It follows that this part of the application must be rejected under Article 35 § 4 of the Convention.

4. The applicant complains that the Slovak authorities prevented him from freely deciding on his nationality in that they refused to recognise his right to have both Slovak and Czech. He alleges a violation of Articles 13 and 14 of the Convention.

The Court recalls that the Convention does not guarantee the right to the nationality of a certain State. Furthermore, the facts complained of do not disclose any appearance of a violation of the applicant's rights under the Convention.

This part of the application is therefore incompatible *ratione materiae* with the provisions of the Convention within the meaning of Article 35 § 3.

5. The applicant complains about the disconnection of his telephone in 1997 and that he received no compensation in this respect. He alleges a violation of Articles 3, 8, 13 and 14 of the Convention.

The Court notes that the applicant lodged neither a request for a review of the administrative decisions complained of nor a claim for damages with a court. He has not, therefore, exhausted domestic remedies as required by Article 35 § 1 of the Convention.

It follows that this part of the application must be rejected under Article 35 § 4 of the Convention.

6. The applicant complains that the owner of his flat had failed to comply with the Žiar nad Hronom District Court's judgment of 27 February 1986. He alleges, in particular, that he was not provided with two keys from the block of flats in which he lives and that his property was damaged by employees of the company owning the flat. He invokes Articles 3, 6 § 1, 8, 13, 14 and 17 of the Convention, Article 1 of Protocol No. 1 and Article 3 of Protocol No. 7.

The Court notes that the applicant has not requested the enforcement of the relevant part of the judgment of 27 February 1986 notwithstanding that he had been informed about such a possibility on 10 September 1986.

To the extent that the applicant complains about the damage caused to him while the aforesaid judgment was being complied with, it does not appear from the documents submitted that he claimed compensation before the courts. The applicant has not, therefore, exhausted domestic remedies as required by Article 35 § 1 of the Convention.

It follows that this part of the application must be rejected under Article 35 § 4 of the Convention.

7. a) The applicant complains that the right to work, to social security and the right to protection of one's health have not been respected in Slovakia, that persons in need have not been provided with adequate assistance and that their human dignity has not been respected. He invokes several provisions of the Constitution and also Article 1 of the European Social Charter.

The Court recalls that the Convention does not guarantee, as such, the right to work, to social security or to protection of a person's health. These complaints are therefore incompatible *ratione materiae* with the Convention within the meaning or Article 35 § 3.

b) The applicant complains that his disabled daughter has not been granted all social benefits to which she is entitled under Slovak law, that the Žiar nad Hronom District Office has paid his family's social allowances belatedly and that he suffered damage as the District Office's decisions concerning this issue were quashed as being unlawful on several occasions. The applicant further complains that the local authorities have dealt with his requests for social allowances in a bureaucratic manner and that they caused damage to him by repeatedly requesting him to submit documents which they already had at their disposal. He alleges a violation of Articles 1, 3, 6, 8, 13, 14 and 17 of the Convention.

It does not appear from the documents before the Court that the applicant sought judicial review of the administrative decisions complained of and that he introduced an action for compensation before domestic courts. In this respect he has not, therefore, exhausted domestic remedies as required by Article 35 § 1 of the Convention.

c) The applicant complains under Article 8 of the Convention that by gathering information on his family's situation the administrative authorities have interfered with his right to respect for his private life.

The Court finds that the obligation imposed on the applicant to produce documents on his family's situation with a view to paying social allowances to him does not amount to an interference with his rights under Article 8 § 1 of the Convention. Accordingly, this complaint is manifestly ill-founded within the meaning of Article 35 § 3 of the Convention.

It follows that this part of the application must be rejected under Article 35 § 4 of the Convention.

8. The applicant complains about the dismissal of his criminal complaints against persons who infringed his right to respect for his home and private life (see point 8 in the facts above). He alleges a violation of Article 8 § 1 of the Convention.

The Court notes that the final decisions on the criminal complaints lodged by the applicant were taken on 28 January 1994 and on 28 February 1994 respectively whereas this part of the application was introduced on 26 March 1996. Consequently, the applicant has failed to respect the six months' time-limit laid down in Article 35 § 1 of the Convention.

It follows that this part of the application must rejected under Article 35 § 4 of the Convention.

9. The applicant complains about a violation of his property rights in that his shares lost their value as a result of the Government's failure to prevent shortcomings in the management of the Slovak Insurance Company Ltd. and to enact legislation sufficiently protecting the individual shareholders. He further complains that the second round of denationalisation by coupons was not carried out as originally envisaged, that he was not able to exchange his bond for shares in profit making companies or to sell it. He alleges, in substance, a violation of Article 1 of Protocol No. 1.

The Court does not consider it necessary to determine whether or not the facts complained of amount to an interference with the applicant's rights under Article 1 of Protocol No. 1 since, in any event, the applicant has not shown that he sought redress, e.g. by means of an action for damages, before Slovak courts. He has not, therefore, exhausted domestic remedies as required by Article 35 § 1 of the Convention.

It follows that this part of the application must be rejected under Article 35 § 4 of the Convention.

10. The applicant complains that the police failed to carry out an effective investigation into the accident in which his daughter had been injured in 1992 and about the dismissal of the claim for compensation in this respect. He alleges a violation of Articles 6 § 1, 13 and 14 of the Convention

The Court notes that the final decisions in respect of these complaints were delivered by the Minister of the Interior on 19 January 1994 and by the Banská Bystrica Regional Court on 29 May 1995. As the complaints were introduced on 26 March 1996, the applicant has failed to respect the six months' time-limit laid down in Article 35 § 1 of the Convention.

It follows that this part of the application must rejected under Article 35 § 4 of the Convention.

11. The applicant complains that the Slovak Insurance Company Ltd. terminated several of his contracts and that it failed to comply with its contractual obligations. In the applicant's view, he cannot obtain redress before the Slovak courts as the latter have systematically decided against him. He alleges a violation of Articles 3, 6, 8, 11, 13 and 14 of the Convention.

Even assuming that the responsibility of the Slovak Republic is involved in this respect, the Court notes that the applicant did not seek redress before domestic courts. He has not, therefore, exhausted domestic remedies as required by Article 35 § 1 of the Convention.

It follows that this part of the application must be rejected under Article 35 § 4 of the Convention.

12. The applicant complains that the criminal proceedings against him were unfair and that the courts have refused to determine also the charge in respect of which the proceedings were discontinued on 20 March 1973. He alleges a violation of Articles 3, 6, 8, 11, 13 and 14 of the Convention and also a violation of Article 3 of Protocol No. 7.

The Court notes that all relevant decisions in the criminal proceedings complained of were delivered prior to 18 March 1992. Accordingly, this part of the application is incompatible *ratione temporis* with the Convention within the meaning of Article 35 § 3.

Even assuming that an issue under the Convention arises in respect of the dismissal of the applicant's request for the proceedings to be resumed by the president of the Žiar nad Hronom District Court on 15 June 1992, the Court notes that this complaint was introduced on 26 March 1996, i.e. after the expiry of the six months' time-limit laid down in Article 35 § 1 of the Convention.

It follows that this part of the application must be rejected under Article 35 § 4 of the Convention.

13. The applicant complains that the dismissal of his action for damages of 5 August 1998 was arbitrary and that the proceedings lasted unreasonably long. He also complains that the judges involved lacked impartiality. He alleges a violation of Articles 1, 3, 6 § 1, 13, 14 and 17 of the Convention.

a) To the extent that the applicant complains about assessment of the evidence and the result of the proceedings before the national courts, the Court recalls that, according to Article 19 of the Convention, its duty is to ensure the observance of the engagements undertaken by the Contracting Parties in the Convention. In particular, it is not its function to deal with errors of fact or law allegedly committed by a national court unless and in so far as they may have infringed rights and freedoms protected by the Convention. Moreover, while Article 6 of the Convention guarantees the right to a fair hearing, it does not lay down any rules on the admissibility of evidence or the way it should be assessed, which are therefore primarily matters for regulation by national law and the national courts (see *Garcia Ruiz v. Spain* [GC], no. 30544/96, § 28, ECHR 1999-I).

In the present case domestic courts at two levels of jurisdiction found that the applicant failed to make out his claim and the Court has before it no information indicating that their decision was arbitrary or that the proceedings at issue were unfair.

b) The proceedings complained of started on 5 August 1998 and ended on 29 September 1999. During this period the applicant's claim was examined at two levels of jurisdiction and two procedural decisions were taken. In the Court's view, the length of the proceedings did not exceed the "reasonable time" requirement laid down in Article 6 § 1 of the Convention.

c) As to the complaint that the courts dealing with the case lacked impartiality, the Court notes that in domestic proceedings the applicant only challenged the first instance court judges with reference to the way in which his other cases had been dealt with. The Court considers that the mere disapproval of the way in which a court previously dealt with different cases involving the same party does not, as such, permit the conclusion that the court judges do not meet the requirement of impartiality set out in Article 6 § 1 of the Convention.

d) The Court has also examined the applicant's complaints under Articles 1, 3, 13, 14 and 17 of the Convention but finds, to the extent that they have been substantiated and fall within its competence, that they do not disclose any appearance of a violation of the Convention.

It follows that this part of the application is manifestly ill-founded within the meaning of Article 35 § 1 of the Convention.

14. The applicant complains that the mail sent to him by the Court's Registry on 20 September 1999 was opened and damaged. He alleges a violation of Articles 8, 10, 13, 14, 17 and 18 of the Convention.

It does not appear from the documents submitted that the applicant lodged a complaint with postal authorities or with the police with a view to having the interference complained of investigated into. Furthermore, and even assuming that domestic remedies were exhausted as required by Article 35 § 1 of the Convention, there is no indication before the Court that the interference is imputable to the respondent State.

It follows that this part of the application must be rejected under Article 35 § 4 of the Convention.

15. The applicant complains that the Žiar nad Hronom District Court did not examine his action against the owner of the block of flats in which he lives introduced on 28 June 1999. He alleges a violation of Articles 1, 3, 6, 8, 10, 13, 14, 17 and 18 of the Convention.

The Court notes that the Žiar nad Hronom District Court was not in a position to deal with the applicant's action as the applicant failed, despite the court's advice, to submit it in accordance with the formal requirements set out in the Code of Civil Procedure. In these circumstances, the Court considers that the applicant failed to exhaust domestic remedies as required by Article 35 § 1 of the Convention.

It follows that this part of the application must be rejected under Article 35 § 4 of the Convention.

16. The applicant complains that his right to a fair and public hearing within a reasonable time was not respected in the proceedings concerning his claim for an overpaid sum. He alleges a violation of Articles 1, 3, 6 § 1, 8, 13, 14, 17 and 18 of the Convention.

a) The proceedings have been pending since 28 June 1999. In the Court's view, their length has not, for the time being, exceeded the "reasonable time" requirement laid down in Article 6 § 1 of the Convention.

b) As regards the other complaints, the Court notes that the proceedings are still pending. Accordingly, they are premature.

It follows that this part of the application is manifestly ill-founded within the meaning of Article 35 § 3 of the Convention.

17. The applicant complains that the first proceedings concerning the outstanding rent and leading to the Banská Bystrica Regional Court's judgment of 13 June 1995 were not fair and that the judge dealing with the case at first instance lacked impartiality. In particular, the applicant complains that the judge did not accept his remarks concerning the conduct of the proceedings, that he failed to record the applicant's objections to statements made by the witnesses, did not provide him with the record of these statements and behaved arrogantly. Finally, the applicant complains that his family was humiliated as a result of the enforcement of the outstanding rent. He alleges a violation of Articles 3, 6 § 1, 8, 13 and 14 of the Convention.

a) The Court recalls that it has only limited power to deal with errors of fact or law allegedly committed by national courts or to review the way in which evidence was assessed in domestic proceedings (see *Garcia Ruiz v. Spain* [GC], referred to above).

In the present case, courts at two levels of jurisdiction found, for reasons set out in their judgments, that the applicant owed the outstanding rent to the owner of his flat and their reasoning does not appear arbitrary. The domestic courts did not consider it necessary to take further evidence in respect of the damage the owner of the flat had caused to the applicant as this issue was not the subject-matter of the proceedings. Since the statements of the witnesses contested by the applicant apparently concerned the latter issue, the Court considers that the alleged shortcomings related to the recording of those statements and to providing the applicant with a copy thereof did not affect the applicant's right to a fair hearing guaranteed by Article 6 § 1 of the Convention.

b) As to the applicant's complaint under Article 6 § 1 of the Convention about the lack of impartiality of the District Court judge, the Banská Bystrica Regional Court found irrelevant the applicant's allegations and the Court sees no reason for reaching a different conclusion. In particular, the fact that the judge did not accept the applicant's remarks concerning the conduct of the proceedings and that he behaved in a manner which the applicant considered arrogant do not, as such, indicate that he was biased.

c) The Court has examined the complaint under Article 3 of the Convention that the applicant's family was humiliated as a result of the enforcement of the judgments ordering the applicant to pay the rent, and also the complaints under Articles 8, 13 and 14 of the Convention but finds, to the extent that they have been substantiated and fall within its

competence, that they do not disclose any appearance of a violation of the applicant's rights guaranteed by the Convention.

It follows that this part of the application is manifestly ill-founded within the meaning of Article 35 § 3 of the Convention.

18. The applicant complains that in the second set of proceedings concerning the outstanding rent the Žiar nad Hronom District Court refused to hear witnesses, that the judge lacked impartiality as she proceeded with the case despite his request not to do so, that the proceedings lasted unreasonably long and that the courts' decision to grant the claimant company's action were arbitrary. He alleges a violation of Articles 3, 6, 8, 13 and 14 of the Convention.

a) The District Court found that the applicant's arguments according to which the owner of the flat was responsible for defects in it related to the same facts which had been determined earlier in another set of proceedings. This issue was not disputed between the parties and the owner of the flat reduced the outstanding sum on this account. In these circumstances, the Court considers that the failure to hear witnesses on facts which the courts held for established as suggested by the applicant did not infringe his right to a fair hearing guaranteed by Article 6 § 1 of the Convention. Furthermore, in its judgment the Regional Court advised the applicant that he could lodge a separate action should the owner be responsible for further deterioration of the flat in the meantime. To the extent that the applicant complains about the outcome of the proceedings, the Court considers that the decisions complained of were not arbitrary.

b) In the Court's view, the fact that at the hearing held on 30 April 1998 the District Court judge proceeded with the case despite the applicant's argument that his application concerning the same issue was pending before the European Commission of Human Rights is not a relevant reason for concluding that the applicant's right under Article 6 § 1 of the Convention to a hearing by an impartial tribunal was infringed.

c) The proceedings complained of started on 22 January 1997 and ended by the Banská Bystrica Regional Court's judgment delivered on 10 September 1998. The Court considers that their length did not exceed the "reasonable time" requirement laid down in Article 6 § 1 of the Convention.

d) The Court has also examined the complaints under Articles 3, 8, 13 and 14 of the Convention but finds, to the extent that they have been substantiated and fall within its competence, that they do not disclose any appearance of a violation of the Convention.

It follows that this part of the application is manifestly ill-founded within the meaning of Article 35 § 3 of the Convention.

19. The applicant complains that the manager of the Aluminium Works in Žiar nad Hronom violated his rights in that (i) the applicant received no compensation for the theft of his watch, (ii) the manager took no action on the applicant's complaint about unlawful actions of another employee of the company and, (iii) that the applicant was not granted the leave to work in a similar company in Austria. He alleges a violation of Articles 3, 8, 13 and 14 of the Convention.

The Court does not consider it necessary to determine whether the responsibility of the respondent party is involved and whether the applicant's rights under the Convention were affected since, in any event, the applicant did not sue the manager whom he considers responsible for the violation of his rights before a court. Accordingly, he has not exhausted domestic remedies as required by Article 35 § 1 of the Convention.

It follows that this part of the application must be rejected under Article 35 § 4 of the Convention.

20. The applicant complains that he received no compensation for the injury of his liver in 1992 and that he has not been provided with adequate medical care. He alleges a violation of Articles 4, 6, 8, 11, 13 and 14 of the Convention.

a) Even assuming that the complaint about the failure to pay damages to the applicant for the injury of his liver raises an issue under the Convention, the Court notes that the applicant did not lodge a separate claim for compensation before the courts. In this respect he has not, therefore, exhausted domestic remedies as required by Article 35 § 1 of the Convention.

It follows that this part of the application must be rejected under Article 35 § 4 of the Convention.

b) The Court further finds that the complaints relating to the quality of the medical care the applicant has been provided with do not raise an issue under the Convention or its Protocols.

It follows that this part of the application is incompatible *ratione materiae* with the Convention within the meaning of Article 35 § 3.

21. The applicant complains that the proceedings concerning his dismissal from the Aluminium Works in Žiar nad Hronom were unfair and that the courts' decisions on this issue were arbitrary. He complains, in particular, that the courts failed to establish the facts correctly, that the Žiar nad Hronom District Court did not include all documents submitted by him in the case file and that he was not heard at first instance. The applicant further complains that his claim for compensation for lost income of 2 May 1994 was not examined and that his right to a fair and public hearing within a reasonable time was thereby violated. He alleges a violation of Articles 3, 6, 8, 11, 13 and 14 of the Convention.

a) The Court considers that it cannot, on the basis of the case file, determine the admissibility of the complaints under Articles 6 and 13 of the Convention that the applicant's claim for compensation for lost income lodged on 2 May 1994 was not determined by the courts.

It is therefore necessary, in accordance with Rule 54 § 3 (b) of the Rules of Court, to give notice of this part of the application to the respondent Government.

b) To the extent that the applicant complains under Articles 6 and 13 of the Convention about unfairness of the proceedings concerning the remaining claims relating to his dismissal in 1993, the Court notes that the alleged shortcomings in the proceedings before the District Court were remedied by the Regional Court in that it gave the applicant the opportunity to

present, both orally and in writing, all arguments and evidence which he considered necessary. The Court further considers that the domestic courts' decision to dismiss the applicant's action was not arbitrary.

It follows that this part of the application is manifestly ill-founded within the meaning of Article 35 § 3 of the Convention.

c) The Court has also examined the remaining complaints in respect of the proceedings leading to the Banská Bystrica Regional Court's judgment of 5 September 1996 but finds, to the extent that they have been substantiated and fall within its competence, that they do not disclose any appearance of a violation of the Convention.

It follows that this part of the application is manifestly ill-founded within the meaning of Article 35 § 3 of the Convention.

22. a) The applicant complains that the Zvolen District Court prevented him from being rehabilitated under the Extra-Judicial Rehabilitations Act in that it delivered a certificate to him on 31 October 1991, i.e. after the expiry of the period set for the introduction of claims under the Act. He alleges a violation of Articles 3, 6 § 1, 8, 13 and 14 of the Convention.

Since the relevant facts relate to a period which is prior to 18 March 1992, these complaints are outside the temporal jurisdiction of the Court.

It follows that this part of the application is incompatible *ratione temporis* with the Convention within the meaning of Article 35 § 3.

b) The applicant further complains that his action for rehabilitation lodged with the Žiar nad Hronom District Court on 30 September 1991 has not been decided upon. He alleges a violation of Articles 6 § 1 and 13 of the Convention.

The Court considers that it cannot, on the basis of the case file, determine the admissibility of these complaints and that it is therefore necessary, in accordance with Rule 54 § 3 (b) of the Rules of Court, to give notice of this part of the application to the respondent Government.

c) Finally, the Court finds that the applicant failed to substantiate his complaint under Article 14 of the Convention taken together with Articles 6 § 1 and 13 of the Convention that his action for rehabilitation lodged with the Žiar nad Hronom District Court on 30 September 1991 has not been decided upon.

It follows that this part of the application is manifestly ill-founded within the meaning of Article 35 § 3 of the Convention.

23. The applicant complains that the criminal proceedings against the perpetrators of the theft from his car in 1997 lasted unreasonably long, that the judgments delivered by the Žiar nad Hronom District Court and by the Banská Bystrica Regional Court on 29 January and on 29 April 1998 respectively are arbitrary and that his right to a fair and public hearing was not respected in the proceedings against the third perpetrator in which the Levice District Court delivered a penal order on 23 September 1999. He invokes Articles 1, 3, 6 §§ 1, 2 and 3 as well as Articles 8, 13, 14, 17 and 18 of the Convention.

a) As to the complaints under Articles 6 § 1 and 13 of the Convention that the applicant's right to a fair and public hearing within a reasonable time and to an effective remedy were violated in the proceedings against the third accused in which the Levice District Court issued the penal order of 23 September 1999, the Court considers that it cannot, on the basis of the case file, determine the admissibility of this complaint and that it is therefore necessary, in accordance with Rule 54 § 3 (b) of the Rules of Court, to give notice of this part of the application to the respondent Government.

b) The Court further finds that the applicant cannot claim to be a victim of a violation of his rights under Article 6 §§ 2 and 3 of the Convention in the context of the criminal proceedings against the persons who had stolen objects from his car as these proceedings did not determine any "criminal charge" against him.

c) The Court has also examined the remaining complaints which the applicant makes under Articles 1, 3, 6 § 1 and 13 (in respect of the proceedings leading to the Banská Bystrica Regional Court's judgment of 29 April 1998) and also under Articles 8, 14, 17 and 18 of the Convention but finds, to the extent that they have been substantiated and fall within its competence, that they do not disclose any appearance of a violation of the Convention.

It follows that this part of the application is manifestly ill-founded within the meaning of Article 35 § 3 of the Convention.

For these reasons, the Court, unanimously,

DECIDES TO JOIN the applications;

DECIDES TO ADJOURN the examination of the applicant's complaints under Articles 6 § 1 and 13 of the Convention that his claim for compensation for lost income lodged on 2 May 1994 and his action for rehabilitation lodged with the Žiar nad Hronom District Court on 30 September 1991 have not been decided upon, and also of the complaints under Article 6 § 1 and 13 of the Convention about the proceedings leading to the delivery of the Levice District Court's penal order of 23 September 1999 (see points 21 (a), 22 (b) and 23 (a) in "The Law" above);

DECLARES INADMISSIBLE the remainder of the application.

Commented [Note1]: Summarise the complaints without necessarily citing the invoked Convention Articles.

Erik Fribergh
Registrar

Christos Rozakis
President